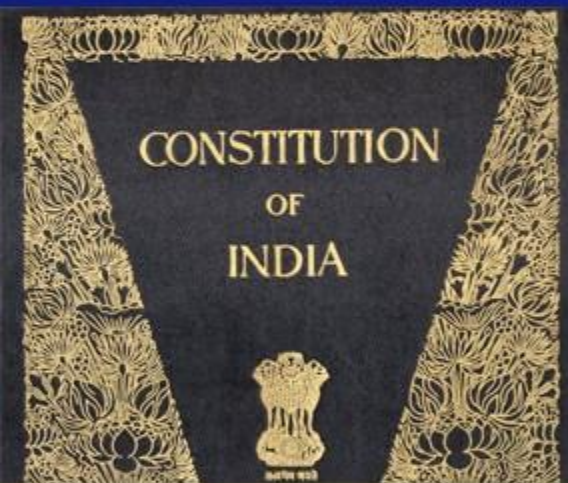


INDIAN POLITY



MODULE - 40

FUNDAMENTAL RIGHTS

- ARTICLE 25, 26, 27 & 28
- PROPAGATION vs CONVERSION

RIGHT TO FREEDOM OF RELIGION

COMPLEXITY OF WORD “SECULARISM”

ARTICLE 25



Secularism in Indian context

- 1 It should be pointed out in the context of Article 25 that the word 'secular' is a dubious word, capable of diverse meanings and one of its dictionary meanings is 'concerned with the affairs of the world' as opposed to religious affairs.
- 2 This has not only caused confusion amongst teachers of Political Science and Law in India but has also been taken advantage of by vested interest parties.

RIGHT TO FREEDOM OF RELIGION

COMPLEXITY OF WORD “SECULARISM”

ARTICLE 25

3 This state of confusion has been set at rest by authoritative pronouncements made by the Supreme Court, in a nine-Judge decision, as follows:

1. Secularism, in India, does not mean that the State should be hostile to religion but that it should be neutral as between the different religions.
2. Every individual has the freedom to profess and practise his own religion, and it cannot be contended that “if a person is a devout Hindu or a devout Muslim, he ceases to be secular”.
3. The neutrality of the state would be violated **if religion is used for political purposes and advocated by the political parties for their political ends**. An appeal to the electorate on grounds of religion offends secular democracy. **Politics and religion cannot be mixed**.
4. It is in this sense that secularism is to be regarded as a basic feature of the Constitution.

RIGHT TO FREEDOM OF RELIGION

DEBATE OF PROPAGATION vs CONVERSION

ARTICLE 25



Forced conversions in religions

1 This question over conversion came when some Christian leaders asserted that the word propagate in Art. 25(1) gives them a fundamental right to convert people of other Faiths into Christianity, by any means.

2 This assertion, followed by agitation, is particularly amazing because it seeks to undermine the decision of the Supreme Court in *Stainislau's* case in January, 1977, which had been brought by a Christian Father, who sought to invalidate a Madhya Pradesh Act, because it made it a penal offence to convert or to attempt to convert a person by means of 'force, fraud or allurement'.

RIGHT TO FREEDOM OF RELIGION

DEBATE OF PROPAGATION vs CONVERSION

ARTICLE 25



3 Orissa had earlier passed a similar Act (which used the word 'inducement' in place of allurement') and the constitutionality of that Act had been challenged by several members of the Christian community, including a Christian Society, a Professor of Geology and several priests.

4 Both the Acts of law were taken up together by the Supreme Court and the contentions of the Christian community were rejected in toto, by the Supreme Court, laying down the following propositions of law which are, under the Constitution, binding upon all Courts in India.

RIGHT TO FREEDOM OF RELIGION

DEBATE OF PROPAGATION vs CONVERSION

ARTICLE 25

The following are the main propositions based on our constitution, under which the SC has rejected the arguments posed by some Christian community.

- 1** The right to 'propagate' in Art. 25(1), gives to each member of every religion the right to spread or disseminate the tenets of his religion (say, by advocacy or preaching), but it would not include the right to convert another, because each man has the same freedom of 'conscience' guaranteed by that very provision [Art. 25(1)], on which the Christians relied.
- 2** The equal freedom of conscience, belonging to each man, under Art. 25(1), means that he has the freedom to choose and hold any faith of his choice and not to be converted into another religion by means of force, fraud, inducement or allurement.
- 3** He can, of course, voluntarily adopt another religion, but 'force, fraud, inducement or allurement' takes away the free consent from the would-be convert.

RIGHT TO FREEDOM OF RELIGION

DEBATE OF PROPAGATION vs CONVERSION

ARTICLE 25



Ghar wapsi of Hinduism considered as “return ticket” back to Hinduism

- 4** Even assuming that a particular religion had the right to propagate its tenets by any means, including conversion – the State has the right and duty to intervene if such activity of conversion offended against ‘public order, morality or health’, because the guarantee of freedom of religion in Art. 25(1) is subject to the limitations of ‘public order, morality, or health’.
- 5** If any such right to convert be conceded, such right would belong to every religion, so that there would inevitably be a breach of the public peace if every religion community carried on a campaign to convert people belonging to other faiths, by the use of force, fraud, inducement or allurement.

RIGHT TO FREEDOM OF RELIGION

DEBATE OF PROPAGATION vs CONVERSION

ARTICLE 25



6 The State was, therefore, constitutionally, authorised to maintain public order by prohibiting and penalising conversion (including attempt to convert) if force, fraud, inducement or allurement was used by the person or persons advocating conversion in any particular case.

7 This is exactly what had been done by the M.P. and Orissa Acts. **The Supreme Court, therefore, upheld the constitutional validity of both the M.P. and Orissa Acts,** after rejecting every plea raised on behalf of the Christian parties.

RIGHT TO FREEDOM OF RELIGION

ARTICLE 26

FREEDOM TO MANAGE RELIGIOUS AFFAIRS

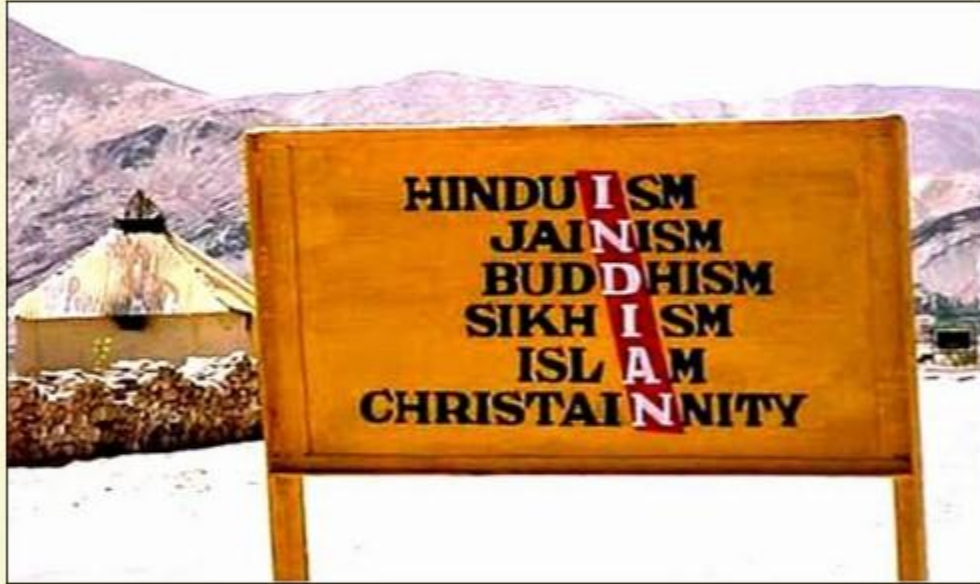


- 1 According to Article 26, every religious denomination or any of its section shall have the following rights:
 - a) Right to establish and maintain institutions for religious and charitable purposes.
 - b) Right to manage its own affairs in matters of religion.
 - c) Right to own and acquire movable and immovable property and
 - d) Right to administer such property in accordance with law.

RIGHT TO FREEDOM OF RELIGION

ARTICLE 26

FREEDOM TO MANAGE RELIGIOUS AFFAIRS



2 Article 25 guarantees rights of individuals, while Article 26 guarantees rights of religious denominations or their sections. In other words, **Article 26 protects collective freedom of religion.**

3 Like the rights under Article 25, the rights under Article 26 are also subject to public order, morality and health **but not subject to other provisions relating to the Fundamental Rights.**

RIGHT TO FREEDOM OF RELIGION

ARTICLE 26

FREEDOM TO MANAGE RELIGIOUS AFFAIRS



4

The Supreme Court held that religious denomination must satisfy three conditions:

- a) It should be a collection of individuals who have a system of beliefs (doctrines) which they regard as conducive to their spiritual well-being
- b) It should have a common organizations and
- c) It should be designated by a distinctive name.

RIGHT TO FREEDOM OF RELIGION

ARTICLE 26

FREEDOM TO MANAGE RELIGIOUS AFFAIRS



- 5 Under the above criteria, the Supreme Court held that the Ramakrishna Mission and Ananda Marga are religious denominations within the Hindu religion. It also held that Aurobindo Society is not a religious denomination.

RIGHT TO FREEDOM OF RELIGION

FREEDOM FROM TAXATION FOR PROMOTION OF A RELIGION

ARTICLE 27



- 1 Article 27 lays down that no person shall be compelled to pay any taxes for the promotion or maintenance of any particular religion or religious denomination.
- 2 In other words, the State should not spend the public money collected by way of tax for the promotion or maintenance of any particular religion.

RIGHT TO FREEDOM OF RELIGION

FREEDOM FROM TAXATION FOR PROMOTION OF A RELIGION

ARTICLE 27

3 This provision prohibits the State from favoring, patronizing and supporting one religion over the other. This means that the taxes can be used for the promotion or maintenance of all religions.

4 This provision prohibits only levy of a tax and not a fee. This is because the purpose of a fee is to control secular administration of religious institutions and not to promote or maintain religion.

5 Thus, a fee can be levied on pilgrims to provide them some special service or safety measures.

6 Similarly, a fee can be levied on religious endowments for meeting the regulation expenditure.

RIGHT TO FREEDOM OF RELIGION

FREEDOM FROM ATTENDING RELIGIOUS INSTRUCTION

ARTICLE 28

- 1** Under Article 28, no religious instruction shall be provided in any educational institution wholly maintained out of State funds.
- 2** However, this provision shall not apply to an educational institution administered by the State but established under any endowment or trust, requiring imparting of religious instruction in such institution.
- 3** Further, no person attending any educational institution recognized by the State or receiving aid out of State funds shall be required to attend any religious instruction or worship in that institution **without his consent**. In case of a minor, the consent of his guardian is needed.

RIGHT TO FREEDOM OF RELIGION

FREEDOM FROM ATTENDING RELIGIOUS INSTRUCTION

ARTICLE 28



4 Thus, Article 28 distinguishes between four types of Educational institutions:

- a) Institutions wholly maintained by the State.
- b) Institutions administered by the State but established under any endowment or trust.
- c) Institutions recognized by the State.
- d) Institutions receiving aid from the State.

5 In (a) religious instruction is completely prohibited while in (b), religious instruction is permitted. In c and d, religious instruction is permitted on a voluntary basis.

CONTEMPORARY ISSUE

SC QUESTIONS MANDATORY PRAYER IN KENDRIYA VIDYALAYAS

ARTICLE 28



1 The Supreme Court questioned a revised education code followed by the Central government-run and 1,125-strong Kendriya Vidyalayas.

2 This makes students to recite Sanskrit and Hindi verses with folded palms and closed eyes during morning assemblies or "face public humiliation in front of the entire school."

CONTEMPORARY ISSUE

SC QUESTIONS MANDATORY PRAYER IN KENDRIYA VIDYALAYAS

ARTICLE 28



3

A Bench led by Rohinton Nariman found the petition raises an important issue where a **secular State**, which is supposed to have no religion, is **compelling students drawn from diverse faiths, beliefs, minority communities and many who may be coming from agnostic, scepticist and rationalist family backgrounds to recite a prayer which is “based on Hindu religion”**, under threat of punishment.

CONTEMPORARY ISSUE

SC QUESTIONS MANDATORY PRAYER IN KENDRIYA VIDYALAYAS

ARTICLE 28



सत्यमेव जयते
केन्द्रीय विद्यालय संगठन

KVS

Kendriya Vidyalaya Sangathan



सत्यमेव जयते
Government of India
Ministry of Human Resource
Development

4 The SC issued notice saying that the revised education code of the Kendriya Vidyalayas violate Articles 19 (right to freedom of speech and expression) and Article 28 (1), which prohibits the State from providing any religious instruction in an educational institution run on public funds.

5 The petition filed in the SC said the common prayer amounted to “religious instruction”.

CONTEMPORARY ISSUE

SC QUESTIONS MANDATORY PRAYER IN KENDRIYA VIDYALAYAS

ARTICLE 28

- 6** Kendriya Vidyalayas function under the aegis of the **Ministry Of Human Resource Development (MHRD)**. The Union Minister is the Chairman.
- 7** The schools, which have been existence for over 50 years, make one of world's largest chain of educational institutions spread over regions with diverse languages, culture and traditions.
- 8** The petition pointed to Article 92 of the revised education code, which mandates that “all students irrespective of their faith and belief, have to compulsorily attend the morning assembly and recite the prayer”.
- 9** “All the teachers share the collective responsibility of supervising the assembly and making sure that every student folds his/her hands, closes his/her eyes and recites the prayer without fail.”

CONTEMPORARY ISSUE

SC QUESTIONS MANDATORY PRAYER IN KENDRIYA VIDYALAYAS

ARTICLE 28

10 “Any student failing to do so is punished and humiliated in front of the entire school”.

11 The petition said it is **constitutionally impermissible to impose the prayer on students of other faiths and beliefs.**

12 Students have a fundamental right to pray according to the practices of their religion or not pray at all.

13 Besides, the **practice is an obstacle to fostering a scientific temperament** among the students as the “whole idea of God and religious faith is given immense priority and the same is instilled as a thought process among the students”.

14 The **practice would encourage students to take refuge in supernatural rather than developing a practical resolve** to overcome the hurdles of everyday life, the petition said.

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